PARLIAMENTARY DEBATES

(HANSARD)

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HOUSE OF COMMONS

OFFICIAL REPORT

FOURTH SESSION OF THE FORTIETH PARLIAMENT
OF THE UNITED KINGDOM OF GREAT BRITAIN
AND NORTHERN IRELAND
THIRD YEAR OF THE REIGN OF
HER MAJESTY QUEEN ELIZABETH II

SESSION 1954—55

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Mr. Boyd-Carpenter: There is nothing whatever in that suggestion. The proposal was put forward by the British European Airways Corporation on the ground that, in its view, it made for economical management.

Sir G. Lloyd: Is my right hon. Friend aware that the great majority of the people of Scotland will welcome the patient way in which he has considered the matter and are glad that he will not be rushed into a decision?

Mr. Woodburn: Will the right hon. Gentleman keep in mind that there is a considerable disturbance in Scottish minds at any suggestion of taking industry south, in view of what happened between the wars? Apart altogether from the economic question, will he keep in mind the important social aspect of the problem?

Mr. Boyd-Carpenter: I realise that there is a good deal of feeling on the subject.

SHIPPING (DISCRIMINATORY PRACTICES)

52. **Mr. Page** asked the Minister of Transport and Civil Aviation what instructions have been given to the United Kingdom representatives on the Maritime Transport Committee of the Organisation for European Economic Co-operation in relation to flag discrimination resulting from the United States Cargo Preference Bill, the Chilean Mercantile Marine Bill, and the Saudi-Arabian-Onassis tanker agreement.

Mr. Boyd-Carpenter: The instructions to the United Kingdom representatives on the Maritime Transport Committee of the Organisation for European Economic Co-operation are to oppose discriminatory shipping practices by Governments wherever they are met, and to support the shipping policy of O.E.E.C. which is based on

"the free circulation of shipping in international trades in free and fair competition."

Mr. Page: While thanking my right hon. Friend for that very satisfactory answer, may I ask him whether there is any prospect of the Maritime Transport Committee dealing with the matter in the near future? If so, will he ask our representatives to continue to press against the pernicious practice of flag discrimination?

Mr. Boyd-Carpenter: With regard to future discussions by the Organisation, perhaps my hon. Friend will put a Question on the Order Paper.

FAR EAST (INTERNATIONAL SITUATION)

Mr. Attlee (*by Private Notice*) asked the Secretary of State for Foreign Affairs whether he has any statement to make with regard to the international situation in the Far East.

The Secretary of State for Foreign Affairs (Sir Anthony Eden): Yes, Sir. Her Majesty's Government have been in close and constant touch with the United States Government in recent months concerning the dangerous situation arising out of Chinese Communist attacks upon the islands off the coast of China near the Formosa Straits. We have, also, of course, maintained close contact with the Governments of the Commonwealth and particularly with Her Majesty's Government in New Zealand, which is the other Commonwealth member of the Security Council and its present chairman.

These small islands have been in Chinese Nationalist hands ever since the Japanese surrender in 1945. There had been a lull in attacks upon them between 1949 and 1954, but these were resumed in August last, shortly after the fighting had been ended in Indo-China by the Geneva settlement. The attacks were accompanied by a marked increase in the vehemence of Chinese Communist demands for the transfer of Formosa to the administration of the Chinese Communist Government.

In this situation the first concern of Her Majesty's Government has been, and is, to stop the fighting. We have, therefore, continued to urge on all concerned the importance of doing this and of preventing a wider conflagration. Force is not the solution of these delicate and difficult problems. A settlement can only be arrived at by the peaceful process of patient negotiation.

Her Majesty's Government are convinced that the object of the United States

[SIR A. EDEN.]
Administration has also been to reduce the risks of any extension of the fighting. Their treaty with General Chiang Kai-shek which defines their commitments was concluded with this object in view.

President Eisenhower, in his recent message to Congress, has been careful to say that he is not suggesting that the United States should enlarge its defensive obligations beyond Formosa and the Pescadores as provided by the Mutual Defence Treaty with General Chiang Kai-shek. The President has again emphasised the purely defensive nature of the arrangements with the Chinese Nationalists.

We in this country respect President Eisenhower and know that he would sanction the use of United States forces only with the greatest reluctance and when, in his view, the circumstances constituted an immediate and serious threat to the security of Formosa and the Pescadores. This is not a new element in United States policy.

On the other hand, Her Majesty's Government also understand that in the matter of the coastal islands the Chinese Government cannot be expected to act in such a way as might seem to prejudice what they regard as their rights. We are, however, convinced that the problem of the coastal islands is susceptible of a peaceful solution if only all concerned are prepared to work for it.

In consultation with the United States and other friendly Governments, Her Majesty's Government are examining various courses of action which might further this aim. I will give the House additional information on this subject as soon as I am in a position to do so, having regard to the international discussions which are now proceeding.

Mr. Attlee: I am obliged to the right hon. Gentleman for his statement. It is, of course, clear that in this matter of Formosa and the islands there is an intervention in a civil war. It is purely an action by the United States of America and not an action of the United Nations. But in view of the need for preventing hostilities and trying to get a peaceful arrangement, is it not clear that the right thing would be that China should occupy her proper position in the United Nations?

Sir A. Eden: As to the first part of the right hon. Gentleman's supplementary question, I must say that I am surprised—[HON. MEMBERS: "Why?"]—that he should couple Formosa and the offshore islands in one sentence. [HON. MEMBERS: "Why?"] Because, as the right hon. Gentleman must surely be aware, those have always been treated as separate issues, including during the period when he was responsible as Prime Minister. Formosa has never in this century been a part of China and the status of Formosa—[HON. MEMBERS: "Oh."]—this is very important; I must be allowed to finish—was dealt with by the Treaty of San Francisco, signed by the late Government. [HON. MEMBERS: "Oh."] I think that hon. Gentlemen should treat this with sufficient seriousness to let the Foreign Secretary make his answer. The offshore islands have always been regarded, and are now regarded, by us as part of China. Therefore, we have always been careful to draw that distinction which, I believe, the House should carefully maintain.

As to the second part of the right hon. Gentleman's supplementary question about China and the United Nations, again, nobody knows better than the late Government what caused the delay in the admission of the present Chinese Government to the United Nations. If the right hon. Gentleman the Leader of the Opposition shakes his head, I would remind him there was an act of aggression by the Chinese Communist Government in Korea which was so declared by his representative at the United Nations. It was that event, most unfortunately, which held up the whole process of the admission of China to the United Nations. It is not until we can get a settlement of these issues, the first stage of which is a cessation of fighting in this particular area, that we can hope that wider issues will be settled, too.

Mr. Attlee: I think the right hon. Gentleman will agree that he has left out some of the history. It is quite true that Formosa was seized from China by an act of aggression by Japan. It is equally true that at conferences at the end of the war Formosa was declared to be an integral part of China, and no one stated that more clearly and with more emphasis than Chiang Kai-shek. The fact that he has been put out in

favour of another Government does not really alter the position. Another point is that surely the question of the admission of China to her proper seat in the United Nations was raised some considerable time before any aggression in Korea, and it was denied to her. One of the difficulties in dealing with the matter was that whereas we expected China to observe the rules of the United Nations she was kept out of her proper place in the Security Council.

Sir A. Eden: The right hon. Gentleman is no doubt right in saying that the question of the admission of Communist China to the United Nations was raised before the period when China committed her declared act of aggression. The whole of that period was, of course, in the administration of the late Government. Therefore, the right hon. Gentleman has no cause whatever to charge us with any failure at that time because the Chinese Communist Government was not a member of the United Nations. These charges are made and I should like to answer them.

Mr. Attlee: I made no charge whatever against the Government. I was stating a fact that by the opposition of certain other Powers the United Nations was closed to the proper representative of China. I am well aware that the line we always took was that the Chinese Republic were the proper people to be represented there and not the remnant in Formosa.

Sir A. Eden: Then we are completely agreed. [HON. MEMBERS: "No."] We are agreed that during the life of the late Government it was not found possible to reach international agreement to admit the Chinese Communist Government to the United Nations, and we are also agreed, I hope, that since then the act of aggression by Communist China in Korea, which was condemned by the late Government's representative at United Nations, has, unfortunately, delayed that representation further. These are international facts that we have to face. I tell the House in all seriousness that if we are to meet the present situation which arises out of trouble in the past, for which certainly no Government in this country bears direct responsibility, we can only hope to get a wider settlement if we can get an immediate cease-fire where shots are being exchanged, and it is on that that I think we have to concentrate our endeavours.

Mr. Attlee: I hope that that will be applied to both sides. There is a great deal of indiscriminate attack from the point of view of Chiang Kai-shek. When I was in China, with some colleagues, we had to make a diversion through the interior because of attacks on aircraft on the mainland of China.

Sir A. Eden: My statement is quite clear. The cessation of fighting must be on both sides.

Mr. Bevan: The Foreign Secretary stated that the position of Formosa is much different from that of the offshore islands.

Sir A. Eden: I said "different."

Mr. Bevan: Is different. This has been described in America as a sort of jurisdictional line. We have not been able to understand the situation there. It has always been understood by us that Formosa, equally with the offshore islands, belonged to the mainland of China. That has been our position. Does the right hon. Gentleman now suggest that the situation has been altered by virtue of the fact that Formosa was stolen from China in 1896? Is it now an interpretation of international law that if you steal property from a thief you can hold it?

Sir A. Eden: As the right hon. Gentleman knows quite well, as a result of a treaty Formosa has not formed part of China throughout the whole of this century. I think that we should be doing very little good to our relations, especially our relations with Peking, if we were to indicate that we thought that the position of the offshore islands was comparable with the position of Formosa. It is no such thing, because throughout the period the offshore islands have been beyond dispute a part of China, whereas for half a century Formosa has been part of Japan. The legal aspect of that was first dealt with in the Treaty of Peace to which I have already referred.

Mr. Attlee: The right hon. Gentleman has made it clear that acts of aggression alter these things. It was the act of aggression of Japan that made the Powers

[MR. ATTLEE.]
accept the position that Formosa was an integral part of China and should be returned to her at the end of the war.

Sir A. Eden: Of course, the right hon. Gentleman can suggest that, but I do not think the House would be wise to accept that the position of Formosa, which for half a century has not been part of China, is the same as the position of these islands which, at all times, have been, and are today, recognised as part of China, and I would advise the House to be very careful on the matter.

Mr. Strachey: Are we to understand from the Foreign Secretary's statement that he now regards Formosa as not being an integral part of China? If so, will the right hon. Gentleman tell us what right he considers Chiang Kai-shek's Government have to rule that island?

Sir A. Eden: I regard the status of Formosa as that defined by the Treaty signed by the late Government at San Francisco.

Mr. N. Macpherson: In all these disputes will the Government not overlook the wishes of the people of Formosa themselves?

Mr. Warbey: Is not the right hon. Gentleman capable of distinguishing between the status of Formosa and the state of civil war that has been going on, and is still going on, between the two contesting parties in China? Will the right hon. Gentleman reply to the question put by my right hon. Friend the Leader of the Opposition, who asked whether or not the United States is intervening in a civil war? Will he make it clear to the United States that the people of this country will not support any action by the Government on behalf of the United States Government which would involve us in war with China?

Sir A. Eden: I thought that I was capable of distinguishing, that I had so distinguished and that I had got into trouble for so distinguishing.

Mr. Bellenger: Will the right hon. Gentleman make clear what is the position of this country? He has defined the position of the United States of America. We are closely associated with the United States as members of the United Nations. What is likely to be the position of this country?

Sir A. Eden: I hoped that I had said as much as the House would expect me to say about that. There are discussions of very considerable importance proceeding now between us, the United States and, in particular, the New Zealand Government as the other member of the Council. I would hope, in the course of the next few days, to be able to give the House further information about that. I hope that I may be allowed to do that. This is one of the most difficult positions that I have ever seen in the international situation. I hope that the House will be a little patient if I am not able to give as much information, stage by stage, as I should normally like to give as these events develop.

Mr. Patrick Maitland: Is my right hon. Friend aware that his patient endeavours to secure a cease-fire and prevent the danger of a wider conflagration carry with them the good will and heartfelt prayers of most of the people of this country?

Mr. S. Silverman: Is it not the fact that Chiang Kai-shek himself claims to be in Formosa, and to be the Government of Formosa, only because he claims to be the rightful Government of China? And if that is the case, is it not also the fact that this country has rejected that claim and accepted the claim of the Peking Government to be the Government of China? Is there, then, any doubt that so far as Her Majesty's Government are concerned we do, in fact, recognise Formosa as part of the Chinese mainland?

Sir A. Eden: I should be reluctant to follow the hon. Gentleman in all that. All I have tried to postulate this afternoon—and which, I hope, the House will bear in mind—is that I think that in international law as well as in international fact the position of the offshore islands should be kept distinct to some extent. [HON. MEMBERS: "No."] I am only asking the House to accept the argument. It should be kept distinct from the position of Formosa. That is all I ask.

for a White Paper containing the results of the examination and comments on the Report to be laid this afternoon.

Miss Ward: May I thank my right hon. Friend for the speed with which the Foreign Secretary has acted?

Burgess and Maclean

38. **Lieut.-Colonel Lipton** asked the Secretary of State for Foreign Affairs whether he now has any further information about the disappearance of Burgess and Maclean.

Mr. Nutting: I have no statement to make at present.

Lieut.-Colonel Lipton: Does that answer mean that the Minister is likely to make a statement on the matter in the not-too-distant future? Has the Foreign Office information, which, for some dubious reason, it will not disclose, or is its Intelligence not very intelligent? Is the Minister aware that back benchers of this House often know more about these disappearances than does the Foreign Office?

Mr. Nutting: The reason why I am not in a position to make any statement at the present moment is that I would not wish to make a statement based on inadequate information and insufficient researches, seeing that the investigation into these questions is still being pursued.

Captain Kerby: Has the Foreign Office studied the book published last week in which the allegation is made that both these men were notorious perverts? Can he deny that allegation?

FORMOSA (SITUATION)

33. **Mr. Sorensen** asked the Secretary of State for Foreign Affairs what further statement he has to make in respect of the situation on the South-East China coast; and what progress has been made towards securing a suspension of hostilities in that area.

22. **Mr. Bence** asked the Secretary of State for Foreign Affairs if he will make a statement on the official talks in progress between Britain, New Zealand, and the United States of America on the situation existing between the Chinese Government and Chiang Kai-shek.

Sir A. Eden: The question of the fighting in the Formosa Straits is to be considered by the Security Council today, and it would not be right that I should comment further on the situation, beyond recalling that the first concern of Her Majesty's Government is to find a way to stop the fighting. This was also the purpose of the New Zealand Government in bringing the matter to the attention of the Security Council. Her Majesty's Government in the United Kingdom supported that initiative and, with the agreement of the New Zealand Government, informed the Soviet and Chinese Governments in advance of its purpose and urged them to co-operate. The Soviet Government have now brought before the Security Council a separate proposal of their own.

Her Majesty's Government remain convinced that a solution will not be found through attempts to apportion blame or to oblige one side or the other to give up what they regard as their rights or essential interests. They will, however, do everything in their power to promote agreement so that the fighting is stopped in this inflammable situation.

Mr. Sorensen: While thoroughly appreciating the delicate nature of the negotiations at the moment, could not the right hon. Gentleman at least say whether it is true or untrue that the Chinese Government have indicated that they refuse to consider the question of a cessation of hostilities?

Sir A. Eden: I would rather not put it like that. What is happening at the moment is that the Security Council is meeting this afternoon. It is my hope that it will issue an invitation to the Chinese Government. That is our hope, and that is what we trust will happen. I think that it might be much wiser to leave it at that at the present time.

Mr. Shinwell: In order to remove what I think is undoubtedly some confusion in the minds of many people about the legalistic aspects of the position, for instance, the distinction between the offshore islands and the Pescadores and the position of the Cairo Agreement, and the like, would the Foreign Secretary consider including in the OFFICIAL REPORT a factual statement of the position?

Sir A. Eden: I should certainly be glad to consider that if the right hon. Gentleman would be good enough to put down

a question. I should like to set out the legal position, as it appears to us, but, of course, the right hon. Gentleman will know that that is not the only consideration. However, it would be good if it were set out.

Mr. Shinwell: The right hon. Gentleman will appreciate that even across the Atlantic, in the United States, there seems to be a good deal of confusion about the legalistic aspects.

Sir A. Eden: I agree.

35. **Mr. Emrys Hughes** asked the Secretary of State for Foreign Affairs, in view of the threat to peace resulting from the dispute over Formosa, if he will propose at the United Nations that the future of the island shall be decided by free elections.

Mr. Nutting: As my right hon. Friend said on 26th January, our first concern is to secure a cessation of hostilities in this area. Once this has been achieved, it will be possible to consider other issues.

Mr. Hughes: Can the Minister assure us that his right hon. Friend the Foreign Secretary is as enthusiastic about free elections in Formosa as in Eastern Germany, and has he any idea what would happen to Chiang Kai-shek if there were such free elections in Formosa?

Mr. Nutting: I am afraid that the hon. Gentleman's supplementary is too speculative for me to follow it.

Mr. Noel-Baker: In view of the great importance of the Formosa question, will Her Majesty's Government work for its solution through the United Nations?

Mr. Nutting: That is precisely where we have negotiated the first steps towards what we hope will be a solution.

Mr. Paget: Is there the slightest chance of the Chinese Communist Government accepting the verdict of free elections in Formosa?

MIDDLE EAST (INFORMATION SERVICES)

39. **Mr. Grimond** asked the Secretary of State for Foreign Affairs if he is satisfied that Britain's point of view is adequately presented in Middle Eastern countries, having regard to the small number of British books available in the area, and to the lean budgets for information and news services; and if he will make a statement.

Mr. Nutting: My right hon. Friend is well aware of the importance of presenting Britain's point of view to the Middle Eastern countries. A considerable effort is being made there by our Information Services and the British Council, which maintain libraries of British books and periodicals in 11 Middle Eastern centres.

Mr. Grimond: Will the Minister do his best to persuade the Treasury to be a little more forthcoming in this matter, as there is a widespread belief that it is Treasury opposition which makes it difficult to get British books into this area? There seems to be a distinct lack of money available?

Mr. Nutting: We are doing all we can. This year, the British Council will resume its activities in Persia and will open an office in Kuwait.

COAL

Mining Subsidence (Report)

40. **Mr. Swingler** asked the Minister of Fuel and Power how many of the recommendations of the Turner Report on Mining Subsidence have not yet been implemented; and how many of them will require legislation.

The Parliamentary Secretary to the Ministry of Fuel and Power (Mr. L. W. Joynson-Hicks): None has been carried out except those to which the Coal-Mining (Subsidence) Act, 1950, gave partial effect; and all would require legislation.

Mr. Swingler: As it is now more than five years since the generally accepted recommendations of this Report were published, has the Parliamentary Secretary abandoned all hope of implementing those recommendations and helping the citizens whose interests are being undermined; and if he has not abandoned all hope, when may we expect his Department to take action to implement these five-year-old recommendations?

Mr. Joynson-Hicks: We never abandon all hope. The hon. Gentleman may recall that the matter has been under

Mr. Berwick: Would the Prime Minister at least say this: even if the House is not to be told in detail what the machinery is to be, can he assure the House that he himself knows what it is to be?

The Prime Minister: I or the Foreign Secretary?

Mr. Berwick: The Prime Minister.

The Prime Minister: I cannot pretend to know everything.

MEMBERS (COMMONWEALTH VISITS)

46. **Mr. I. O. Thomas** asked the Prime Minister if he will favourably consider making available to Members of Parliament travelling and other necessary facilities to enable them to visit the various Commonwealth countries and Colonial Territories so that they may become more closely acquainted with the various peoples and political institutions, and with their economic and social problems which are so much the responsibility of Members of this House for consideration and solution.

The Prime Minister: I do not think I can do better than repeat the answer to a Question given by the Leader of the Opposition—whom I am glad to see in his place—when he was head of the Government on 29th October, 1945:

"His Majesty's Government welcome all measures designed to promote a better understanding between the peoples of the British Commonwealth. As regards visits by Members of Parliament, the hon. and gallant Member will no doubt be aware of the long-standing arrangements made by the Empire Parliamentary Association for visits by Parliamentary delegations within the Commonwealth and Empire."—[OFFICIAL REPORT, 29th October, 1945; Vol. 413, c. 289-1.]

We have no intention at present of departing from that policy.

Mr. Thomas: Would the Prime Minister not agree that it would be a worthwhile investment and bring knowledge and understanding of the problems of the British Commonwealth if he were to enable hon. Members to have more direct contact with the nature of these problems, and thereby enable them to deal effectively with them when they are raised in the House? In relation to his reference to the arrangements made by the Commonwealth Parliamentary Association, is he not aware that every hon. Member who is selected for a delegation thinks himself extremely lucky if he gets one visit "out of the hat" in all the time that he is a Member of this House? If the right hon. Gentleman takes the problems of the Commonwealth seriously, I urge him to reconsider the matter so as to enable hon. Members to be given more opportunity for these visits.

FORMOSA (SITUATION)

47. **Mr. Emrys Hughes** asked the Prime Minister if he will make a statement on his recent interchange of views with President Eisenhower on the question of Formosa.

The Prime Minister: I have nothing to add to the very full statement made by my right hon. Friend the Foreign Secretary on 26th January, and his reply to Questions yesterday. A new fact has however occurred. The Security Council has decided to send an invitation to the Chinese Government to attend the discussion. Her Majesty's Government regard the Security Council's action as a genuine attempt to seek a peaceful solution and they therefore very much hope that the Chinese Government will accept the invitation.

Mr. Hughes: In view of the powers which have now been given to President Eisenhower, and the intense interest in this country in what events in Formosa may bring, will he make it clear to, and press on, the President that feeling in this country is strongly against any development of war in the Far East, and that this country wishes to have no participation in it?

The Prime Minister: I do not think it would be my business through any channels to convey that kind of message.

Mr. Noel-Baker: In view of the great gravity of the situation and what the Prime Minister has just said, will he consider whether the Foreign Secretary should not sit as our representative in the Security Council at its meeting next week? Is it not plain that debates in the Council and negotiations outside cannot be adequately dealt with by an official acting on cabled instructions?

The Prime Minister: I certainly do not think we have any reason to complain of the way in which our affairs have been conducted.

Mr. Strachey: Does not the Prime Minister agree that it would be most valuable if the British Government made it publicly known that they regard the early withdrawal of Nationalist troops, at any rate from the offshore islands, as the most important practical step towards a cease-fire in this area?

The Prime Minister: I have no further statement to make on these subjects at the present time.

48. **Mr. Sorensen** asked the Prime Minister to what extent his joint declaration with the late President Roosevelt and the late Marshal Stalin that Formosa should be restored to the Chinese Government, remains the policy of Her Majesty's Government.

The Prime Minister: There seems to me to be a misprint in the hon. Member's Question. To correct it the words "Marshal Stalin" should be left out and the words "Generalissimo Chiang Kai-shek" inserted. This was, in fact, the Cairo Declaration of 1st December, 1943. It contained merely a statement of common purpose. Since it was made a lot of things have happened. As the right hon. Member for Lewisham, South (Mr. H. Morrison) explained to the House on 11th May, 1951—and I shall be very glad to send the hon. Member a copy of what he said—the situation has changed. The problem of Formosa has become an international problem in which a number of other nations are closely concerned. The question of future sovereignty over Formosa was left undetermined by the Japanese Peace Treaty.

Mr. Sorensen: With apologies for the error, may I ask the Prime Minister whether the declaration made on that occasion was to the effect that Formosa rightly belonged to China? In view of the fact that we recognise the present Government, called the People's Republic Government of China, does it not follow that that seems to be an assurance that Formosa should now revert to the control and sovereignty of the present Government, called the People's Republic Government?

The Prime Minister: I think the hon. Member would do well to read the reply given by the right hon. Member for Lewisham, South when he was responsible in this matter.

Mr. S. Silverman: Would the right hon. Gentleman not make it clear that in everybody's opinion—that of all contending parties—Formosa is part of China and that Chiang Kai-shek's presence in Formosa purports itself to be in exercise of this very declaration to which my hon. Friend the Member for Leyton (Mr. Sorensen) has referred? Is not the real question not whether Formosa belongs to China, but who is China?

The Prime Minister: I think I should have to have notice of that.

Captain Waterhouse: Does my right hon. Friend think that the interview given by the Leader of the Opposition yesterday——

Mr. Dodds: A very good interview.

Captain Waterhouse: —accords closely with the speech of the then Foreign Secretary of December, 1950?

Mr. Harold Davies: Things have changed since then.

The Prime Minister: I have no wish to add to the difficulties of the Leader of the Opposition.

Mr. Sorensen: On a point of order. Can the Prime Minister merely refer me to an answer given by one of the Leaders of the Opposition rather than to his own answer, which I did not receive?

Mr. Speaker: I understood that the Prime Minister was referring the hon. Gentleman to a statement made in the House.

JUDICIAL POSTS (APPOINTMENTS)

49. Mr. Malcolm MacPherson asked the Prime Minister if he will now reconsider the long-established practice of making appointments to judicial posts with at least some regard to previous political services.

The Prime Minister: I cannot accept the implication in the hon. Member's Question, so far as I can understand it. It is, and has long been, the practice to appoint as judges those who are held to be best fitted for judicial office.

U.N. ORGANISATIONS (CONTRIBUTIONS)

4. **Wing Commander Bullus** asked the Secretary of State for Foreign Affairs the total annual amount paid by Her Majesty's Government to organisations sponsored by the United Nations; if he will give a list showing each organisation and the amount contributed; and if he will state how these contributions compare with those of other nations.

17. **Mr. Younger** asked the Secretary of State for Foreign Affairs the total sum contributed by Her Majesty's Government, for the latest year for which complete figures are available, to organisations sponsored by the United Nations; and if he will list the contributions to each organisation, together with the proportion of the total budget which this represents in each case.

Mr. Turton: The total United Kingdom contribution to the United Nations, the Specialised Agencies and the Extra-Budgetary Funds for 1954 was approximately £10,340,000. No other Government, except the United States of America, contributed so much. As a detailed statement of our contributions to these organisations, and of its proportion of their total budgets, is rather long, I will, with permission, circulate the figures in the OFFICIAL REPORT.

Wing Commander Bullus: Would not my hon. Friend agree that this country is playing a marked and major part in the support of these organisations, despite our own large contributions to colonial development?

Mr. Turton: I would most certainly agree with that. I think that if my hon. Friend looks at the proportions of the total budgets paid by Her Majesty's Government, he will see that in many cases it is a very high proportion.

Mr. Younger: Would not the hon. Gentleman also agree that it is no more than our duty to play a large part, but just how large that part should be is a matter for argument?

Mr. Turton: I also entirely agree with the right hon. Gentleman.

Following is the statement:

Organisation	U.K. Contribution in 1954	Proportion of total budget
		Per cent.
United Nations	1,392,942	9·80
World Health Organisation	340,364	10·34
U.N. Educational, Scientific and Cultural Organisation	373,053	11·04
Food and Agriculture Organisation	223,813	10·52
International Labour Organisation	277,869	12·79
International Civil Aviation Organisation	90,416	9·80
World Meteorological Organisation	6,990	3·83
International Telecommunications Union (approx.)	28,200	3·98
Universal Postal Union	3,913	3·73
Expanded Technical Assistance Programme	650,000	7·28
U.N. International Children's Emergency Fund	200,000	4·12*
U.N. Relief and Works Agency (for the year ended 30th June, 1954)	1,785,714	22·22
U.N. Korean Reconstruction Agency (for year ended 30th June, 1954)	5,000,000	43·00

* U.N.I.C.E.F. depends in part on voluntary contributions. The percentage given is based on governmental contributions only.

FORMOSA

New Zealand Declaration

7. **Mr. Lewis** asked the Secretary of State for Foreign Affairs, in view of the statement issued by the Government of New Zealand on the question of the United States intervention in the Formosa dispute, if he will now issue a similar declaration.

Sir Anthony Eden: I assume that the hon. Member is referring to the statement made by the Prime Minister of New Zealand in New York on 24th January. My statement to this House on 26th January was couched in similar terms. As the House will be aware, Her Majesty's Government gave full support to the New Zealand Government's subsequent initiative in the Security Council.

Mr. Lewis: While thanking the Foreign Secretary and appreciating the tone of

his reply, may I ask if he is aware that the New Zealand Prime Minister did, in fact, state categorically that the New Zealand Government and people would not be parties to any dispute about or take part in any war in connection with Formosa? The Foreign Secretary was not quite so categorical. Can he now make a similar statement?

Sir A. Eden: The quotation I have of the speech by the New Zealand Prime Minister and the statement which I made are, I think, almost exactly the same. If the hon. Gentleman likes to compare them, I shall be quite ready to do so with him.

Civilian Refugees

15. **Mr. A. Henderson** asked the Secretary of State for Foreign Affairs whether, in order that our representative at the Security Council may be adequately informed, he will seek information from the United Nations Organisation as to the number of civilian refugees from the Chinese mainland who are living on Formosa.

Mr. Turton: The United Nations Organisation will not possess this information as Chinese nationals from the mainland who are now living on Formosa do not fall within the mandate of the United Nations High Commissioner for Refugees. They are not refugees within the terms of the "Convention relating to the Status of Refugees" made in Geneva in 1951. There are, to the best of our information, about a million such nationals.

Mr. Henderson: Can the Joint Under-Secretary say what proportion this number bears to the total population of Formosa?

Mr. Turton: About 10 per cent.

Consular Officers

21. **Mr. Bing** asked the Secretary of State for Foreign Affairs why exequaturs were not applied for in respect of Her Majesty's present Consul and Her Majesty's present Vice-Consul at Tamsui in Formosa.

Sir Anthony Eden: In normal circumstances, exequaturs are applied for by the diplomatic representative accredited to the Government of the State in whose territory the consular officer is to function. In the case of Formosa, we have no such diplomatic representative.

Mr. Bing: Is not the right hon. Gentleman aware that exequaturs from the Republic of China were applied for and obtained for their consular officers by the United States, and, in these circumstances, should he not draw the attention of the United States Government to the difference in views on the law between the British and United States Governments?

Sir A. Eden: I was asked what our own position was, and I have given the answer.

Cairo and Potsdam Declarations

23. **Mr. Bing** asked the Secretary of State for Foreign Affairs the date upon which Her Majesty's Government in the United Kingdom considered they were no longer bound by the Cairo and Potsdam declarations as to the future of Formosa; and the dates upon which this decision was communicated to each of the other Governments parties to these declarations.

26. **Mr. Driberg** asked the Secretary of State for Foreign Affairs what consultations have taken place between Her Majesty's Government and the United States Government on the implementation of the policy on Formosa agreed at the Cairo Conference in 1943; and what communications on this subject have been made to the Central People's Government of China.

Sir Anthony Eden: The policy of Her Majesty's Government with regard to the Cairo Declaration was fully explained to the House by my right hon. Friend the Prime Minister on 1st February. There have been no communications on this subject with the Government of the People's Republic of China. The Potsdam Declaration laid down as conditions for the Japanese that they should carry out the terms of the Cairo Declaration. Japan complied by formally renouncing all title to Formosa in the Japanese Peace Treaty.

Mr. Bing: Is not the right hon. Gentleman aware that the Government of the United States consider Formosa to be an integral part of Chinese territory; that, on that basis, they have concluded a treaty with China which they recognise; and that they do that on the basis of the

Cairo Declaration? Is the right hon. Gentleman now telling the House that the American Treaty is invalid?

Sir A. Eden: No, Sir; my position is exactly the same in this matter as that of the late Government, which was very clearly expressed by the then Foreign Secretary in May, 1951, when he said:

"The question of Formosa will, however, come up in the context of the Japanese Peace Treaty. Our aim here is to secure an early Peace Treaty without allowing the difficult issue of Formosa to delay its negotiation and without attempting in the Treaty to find a final solution to an issue which must be given careful consideration later in the general context of the Far Eastern situation."—[OFFICIAL REPORT, 11th May, 1951; Vol. 487, c. 2302.]

That is still the position of Her Majesty's Government.

Mr. Driberg: In view of the right hon. Gentleman's statement on Friday, in which he said that the status of Formosa was uncertain, and in view of the terms of the Treaty between the Americans and the Chinese Nationalists, in which Formosa is described by inference as an integral part of China, is it not clear that there is a serious difference of opinion on this matter between Washington and London?

Sir A. Eden: No, Sir; that is not so. The position of all countries in this respect is the same. It is that, at the time of the negotiations for the San Francisco Treaty, it was not possible to dispose of Formosa. Had it been possible to agree on the future of Formosa, it would have been included in the Treaty. As it was not possible to decide that, all that the Treaty did was to say that Japanese rights were ceded. That is the position of all the signatories to the Treaty of San Francisco.

Mr. Shinwell: Would not the right hon. Gentleman agree that the present context has made a change in the situation, as contrasted with the time when the Japanese Treaty was signed in San Francisco? In these circumstances, might it not go a long way to satisfy the Chinese People's Government if a firm declaration were made by the right hon. Gentleman that Formosa, whether now or in the future, but at some time, and perhaps as a result of negotiations or some arrangement made between the parties, is an integral part of China and therefore comes under the control of the Chinese People's Government?

Sir A. Eden: I think the position is as I stated in reply to the right hon. Gentleman on Friday. It is equally right to say that none of the signatories has ever said that the islands are never to be ceded to China. What they did say was that they could not agree at the time of the San Francisco Treaty. They agreed on the first part of the operation, which was that Japan surrendered her rights, without allocating the islands. Perhaps I might make one more quotation from the late Government, because this is exactly the point made on 14th December, 1950, when the then Foreign Secretary said:

"But it has to be said that there is a great strategic conflict. It is no use disguising that. There are great problems associated with Formosa, and I shall not come down in a dogmatic way and say that we will do this, that or the other."—[OFFICIAL REPORT, 14th December, 1950; Vol. 482, c. 1462.]

Mr. Paget: Is not the truth of the situation that the Cairo Declaration was, in fact, performed in 1945? The Cairo Declaration was that Formosa was Chinese territory, and the Potsdam Declaration and the Japanese surrender terms say that that Declaration should be performed. It was performed by handing over to the then Chinese Government, and, from 1945 onwards, it has been part of China?

Sir A. Eden: I am afraid that is not so. The position in law is that an armistice or the cessation of fighting does not affect sovereignty. There has not been a transfer of sovereignty because, at San Francisco, although there was a desire to agree about China, there was a difference of opinion as to which Chinese authority it should be handed over.

COUNCIL OF EUROPE (HUMAN RIGHTS CONVENTION)

8. Mr. H. Hynd asked the Secretary of State for Foreign Affairs when it is proposed that this country will declare its acceptance of the clause about right of individual petition in the Council of Europe's Convention on Human Rights and Fundamental Freedoms.

Mr. Turton: Her Majesty's Government do not propose to make such a declaration.

FAR EAST

Formosa and the Pescadores (Treaties)

Mr. Shinwell asked the Secretary of State for Foreign Affairs whether he will include in the OFFICIAL REPORT a factual statement on the legalistic and treaty aspects of the situation on the South-East China coast.

Sir Anthony Eden: Formosa and the Pescadores were ceded to Japan by China in the Shiminoseki Treaty of 1895. In the Cairo Declaration of November, 1943, the Allies stated that it was their purpose "that all the territories which Japan has stolen from the Chinese such as . . . Formosa and the Pescadores, shall be restored to the Republic of China. . . ." This Declaration was a statement of intention that Formosa should be retroceded to China after the war. This retrocession has, in fact, never taken place, because of the difficulties arising from the existence of two entities claiming to represent China, and the differences amongst the Powers as to the status of these entities.

The Potsdam Declaration of July, 1945, laid down as one of the conditions for the Japanese Peace that the terms of the Cairo Declaration should be carried out. In September, 1945, the administration of Formosa was taken over from the Japanese by Chinese forces at the direction of the Supreme Commander of the Allied Powers; but this was not a cession, nor did it in itself involve any change of sovereignty. The arrangements made with Chiang Kai-shek put him there on a basis of military occupation pending further arrangements, and did not of themselves constitute the territory Chinese.

Under the Peace Treaty of April, 1952, Japan formally renounced all right, title and claim to Formosa and the Pescadores; but again this did not operate as a transfer to Chinese sovereignty, whether to the People's Republic of China or to the Chinese Nationalist authorities. Formosa and the Pescadores are therefore, in the view of Her Majesty's Government, territory the *de jure* sovereignty over which is uncertain or undetermined.

The Nationalist-held islands in close proximity to the coast of China are in a different category from Formosa and the Pescadores since they undoubtedly form part of the territory of the People's Republic of China. Any attempt by the Government of the People's Republic of China, however, to assert its authority over these islands by force would, in the circumstances at present peculiar to the case, give rise to a situation endangering peace and security, which is properly a matter of international concern.

American Warships (Hong Kong Repairs)

Mr. Collins asked the Secretary of State for Foreign Affairs whether, to avoid involving this country in incidents arising from the presence of a United States fleet in Chinese waters, he will give instructions that United States war vessels shall not be repaired or refuelled in Hong Kong.

Mr. Turton: No.

SOUTH GOODWIN LIGHTSHIP (LOSS)

Mr. Deer asked the Minister of Transport and Civil Aviation whether he will institute an inquiry into the loss of the South Goodwin lightship.

Mr. Boyd-Carpenter: I have seen the Report of the Inquiry carried out by the Corporation of Trinity House and I do not think that an investigation under the Merchant Shipping Acts would add to our knowledge as to the cause of this tragic occurrence. In their Report the Elder Brethren find that the cause of the disaster on 26th November, 1954, was the parting of the lightship's cable about midnight. The parting may have been due to one or more of three causes, exceptionally bad weather, a fault in the cable or the fouling of the cable by wreckage or other obstruction. They find also that the lightship was in proper and sound condition before the accident and that her equipment and moorings had been properly maintained and all instructions and regulations for the safety of the ship complied with. The Report makes a number of recommendations designed to reinforce the measures already current for the safety of lightships and their crews. I am placing a copy in the Library

Mr. H. Macmillan: I will, with permission, circulate the available information in the OFFICIAL REPORT. I should point out, however, that figures of this kind do not provide a valid basis for comparison of defence burdens.

Country (1)	Percentage of gross national product spent on defence in 1953 (2)	Percentage of total population in Armed Forces (full-time) in 1953 (3)
	1953 figures	
Belgium ...	Official figures not available but probably about 6·0	1·7
Denmark ...	3·7	1·0
France ...	12·4	2·2
Greece ...	6·3	2·2
Italy ...	4·8	1·0
Luxembourg ...	3·8	0·8
Netherlands ...	6·2	1·3
Norway ...	3·6	0·9
Portugal ...	4·3	0·8
Turkey ...	7·8	1·9
United Kingdom	11·3	1·8
U.S.S.R. ...	20·0	2·4

NOTE FOR N.A.T.O. COUNTRIES:

(a) The percentages quoted have been derived from figures published by N.A.T.O., O.E.E.C., and national sources. It has not been possible to obtain manpower figures on a main population basis.

(b) Figures of defence expenditure used are on the N.A.T.O. definition of defence expenditure.

(c) Figures of Gross National Product used are based on national accounts data which are not fully comparable between countries.

(d) The figures in column (2) are a very incomplete guide to the relative defence burdens of countries; they cannot take account of the complex politico-economic circumstances which determine what proportion of total output of goods and services each country might reasonably be expected to devote to defence.

NOTE FOR U.S.S.R.:

Figures are estimates by the Ministry of Defence on a basis as closely comparable as possible with the other figures.

FORMOSA AND THE PESCADORES

73. **Mr. J. Hudson** asked the Secretary of State for Foreign Affairs whether, in view of the refusal of Mr. Chou En-lai to meet the United Nations, he will take immediate steps to have summoned an international conference of the same character as the last principal conference at Geneva to which both China and the United States of America will be invited, with a view to obtaining a cease-fire in the Formosan area.

Sir A. Eden: The consequences of the Chinese refusal are being studied by Her Majesty's Government in close consultation with the Commonwealth and other friendly Governments.

75. **Mr. Warbey** asked the Secretary of State for Foreign Affairs what further consultations he has had with the Government of the United States regarding the status of Formosa and the Pescadores.

Mr. Turton: None. My right hon. Friend gave the House a full statement of Her Majesty's Government's view of the legal position of these islands in reply to a Question by the right hon. Member for Easington (Mr. Shinwell) on 4th February.

76. **Mr. A. Henderson** asked the Secretary of State for Foreign Affairs whether he will state the extent to which recognition has been given by the Allied Powers to the formal proclamation of the Chinese Government at Chunking on 30th August, 1945, that Formosa was a new province of China.

Mr. Turton: I have been unable to trace any such proclamation. Unilateral declarations could not affect the legal status of Formosa, which my right hon. Friend explained fully in his reply to a question by the right hon. Member for Easington (Mr. Shinwell) on 4th February.

U.S. AIR FORCE UNITS, UNITED KINGDOM

74. **Mr. Warbey** asked the Secretary of State for Foreign Affairs what period of notice is required for the denunciation of the agreement by which United States air bases, aircraft, and military personnel are maintained and stationed in the United Kingdom.

Mr. Turton: The United States Air Force units in this country are stationed here under informal arrangements which do not call for notice of termination and which will continue so long as they are needed in the interests of world peace and security.

An announcement about policy will be made shortly in the Memorandum accompanying the Air Estimates.

Overseas Service

Mr. Bellenger asked the Under-Secretary of State for Air the period of overseas service now in force.

Mr. Ward: The normal tour of duty abroad is 2½ years for men and two years for women. The tour is shorter, however, in areas such as Iraq and the Persian Gulf where the climate is trying.

FORMOSA

Cairo and Potsdam Declarations

Mr. Lewis asked the Secretary of State for Foreign Affairs whether he will publish in Hansard the Cairo and Berlin declarations on Formosa as signed by the British and United States Governments.

Mr. Turton: Yes. The following are the relevant extracts.

The Cairo Declaration of December, 1943

"The three great allies are fighting this war to restrain and punish the aggression of Japan. They covet no gain for themselves and have no thought of territorial expansion.

It is their purpose that Japan shall be stripped of all the islands in the Pacific which she has seized or occupied since the beginning of the first world war in 1914, and that all the territories that Japan has stolen from the Chinese, such as Manchuria, Formosa, and the Pescadores, shall be restored to the Republic of China.

Japan will also be expelled from all other territories which she has taken by violence and greed. . . ."

The Potsdam Declaration of July, 1945

"(4) The time has come for Japan to decide whether she will continue to be controlled by those self-willed militaristic advisers whose unintelligent calculations have brought the Empire of Japan to the threshold of annihilation, or whether she will follow the path of reason.

(5) Following are our terms. We will not deviate from them. There are no alternatives. We shall brook no delay. . . .

(8) The terms of the Cairo Declaration shall be carried out and Japanese sovereignty shall be limited to the islands of Honshu, Hokkaido, Kyushu, Shikoku and such minor islands as we determine."

Non-Chinese Forces

Mr. Bing asked the Secretary of State for Foreign Affairs what reports he has received from the United Nations Organisation in regard to the intervention of non-Chinese naval, air or land forces in the Chinese civil war now being fought in the Formosa area.

Mr. Turton: None.

U.S.S.R. (DETAINED BRITISH SUBJECTS)

Sir L. Ropner asked the Secretary of State for Foreign Affairs what information he has as to the detention in Siberia of a British subject named Chapman; and what steps are being taken to obtain the release of this man.

Mr. Turton: I would refer to the reply I gave yesterday to my hon. and gallant Friend the Member for Arundel and Shoreham (Captain Kerby).

NATIONAL SERVICE (GRADE III CONSCRIPTS)

Mr. G. Thomas asked the Minister of Labour the number of men classified as Medical Grade III who were conscripted in 1954, 1953, and 1952, respectively.

Mr. Watkinson: Eight thousand and fifty in 1954, 7,699 in 1953 and 8,189 in 1952.

MINISTRY OF FOOD

Mr. Dodds asked the Prime Minister if he can yet make a statement indicating what kind of machinery is to be set up to safeguard the interests of consumers following dissolution of the Ministry of Food.

The Prime Minister: I have nothing to add to the reply given by my right hon. Friend the Lord Privy Seal on my behalf on 26th January.

N.A.T.O. REPORT

Mr. Renton asked the Secretary of State for Foreign Affairs what arrangements have been made for distributing in the United Kingdom the report of the Secretary General of the North Atlantic Treaty Organisation on the first five years' work of that organisation; and if he will make copies of the report available to the House.